

TENTATIVE RULINGS**DEPT W15****JUDGE RICHARD Y. LEE**

Date: September 10, 2026

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's [website](#) for rules and procedures for court reporters obtained by the Parties.

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5915. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Do not call the department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling. The Court interprets a party's failure to appear at the hearing as a waiver of oral argument.

Remote Appearances: Department W15 permits non-evidentiary proceedings, including law and motion, to be conducted remotely. *If you are appearing remotely:* (1) all counsel and self-represented parties appearing for such hearings **must**, prior to 1:30 p.m. on Thursday, check-in online via the Court's civil video appearance website ([link here](#)); and (2) participants will then be prompted to join the courtroom's Zoom hearing session.

Local Rule 375(c): Attorneys **shall** comply with Local Rule 375(c) which governs "Decorum for In-Person and Remote Court Appearances." ([Local Rule 375\(c\)](#)) Specifically, the video and audio must be turned on and functioning during the hearing; and attorneys are expected to wear appropriate business attire.

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102	Garcia vs. S&A Management, LLC, 24-01376331	Defendant/Cross-Complainant S&A Management, LLC's unopposed motion for leave to file an amended cross-complaint is GRANTED. (Code of Civ. Proc. § 426.50.) S&A Management, LLC to file the First Amended Cross-Complaint within 10 days of this ruling. <i>Moving Party is to give notice.</i>
103	Tayebi vs. L.A. Law, Inc., 22-01291650	Plaintiff Nahid Taybebi ("Plaintiff") moves to strike Defendant Fari Bari Nejadpour's ("Defendant") Memorandum of Costs as untimely. Alternatively, Plaintiff moves to strike: (1) Item 15, "Other" in the sum of \$685.26,

	(2) Item 1. Filing and motion fees in the sum of \$1235.00, (3) Item 13. Models, enlargements, and photocopies of exhibits in the sum of \$842.38, and (4) Item 14. Fees for electronic filing and service in the sum of \$1956.74. Defendant Fari Bari Nejadpour (“Defendant”), proceeding in pro per, opposes the motion. California Rules of Court, rule 3.1700(a)(1) expressly states: “A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case.” (Cal. Rules of Court, rule 3.1700, subd. (a)(1).) “The time provisions relating to the filing of a memorandum of costs, while not jurisdictional, are mandatory.” (<i>Sanabria v. Embrey</i> (2001) 92 Cal.App.4th 422, 426 [citing <i>Hydratec, Inc. v. Sun Valley 260 Orchard & Vineyard Co.</i> (1990) 223 Cal.App.3d 924, 929].) Defendant provides no authority pursuant to which the Court should excuse Defendant’s untimeliness in filing his Memorandum of Costs. “Every brief should contain a legal argument with citation to authorities on the points made. If none is furnished on a particular point, the court may treat it as waived, and pass it without consideration.” (<i>People v. Stanley</i> (1995) 10 Cal.4th 764, 793.) Additionally, parties “may not enlist the court as their legal assistant to develop arguments they merely suggest.” (<i>Paglia & Associates Construction, Inc. v. Hamilton</i> (2023) 98 Cal.App.5th 318, 327.) “It would be unfair for one side to loft an undeveloped legal idea, to rely on the court to work it out, and to leave the opposing party with nothing concrete to tackle in the briefing.” (<i>Ibid.</i> [citing <i>Hewlett-Packard Co. v. Oracle Corp.</i> (2021) 65 Cal.App.5th 506, 565 (failing to develop a reasoned argument supported by authority
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		improperly forces the court to decode a bare assertion that the judgment, or part of it, is erroneous)].) Here, the Court signed and entered judgment on 05/22/2026. (ROA 351.) Plaintiff served a written notice of entry of the judgment on 05/29/2026. (ROA 357.) 15 days after 05/29/2026 is Saturday, 06/13/2026. Defendant, however, did not file and serve the Memorandum of Costs until 07/13/2026. (ROA 359.) As such, the Memorandum of Costs is untimely and STRICKEN. The Motion is GRANTED. Defendant's objections to the declaration of John Gulino are OVERRULED. <i>Plaintiff to give notice.</i>
104	Vicente vs. San Remo Villas Homeowners Association, 25-01531185	Plaintiff, Christina Vicente ("Plaintiff"), demurs to the Answer to Complaint filed by Defendant, San Remo Villas Homeowners Association (the "HOA"), on the grounds that HOA's affirmative defenses numbered 3-21 do not state facts sufficient to constitute a defense and are uncertain under Code of Civil Procedure section 430.20(a) and (b). Plaintiff contends that the HOA's Answer contains irrelevant boilerplate defenses devoid of any facts defying California law, and that there are no facts included anywhere for the third through twenty-first affirmative defenses, such that the demurrer must be sustained in its entirety, without leave to amend, should the HOA be unable to meet its burden to establish that it can adequately plead each of the listed affirmative defenses supported by well-pled facts. The HOA contends that the Answer pleads ultimate facts to support the identified affirmative defenses set forth in the Answer to put Plaintiff on notice of the basis for them, that the HOA need not prove the affirmative defenses at the time the Answer is filed, and that if the court is inclined to sustain the demurrer, it should be with leave to amend. There are three grounds for a demurrer to an answer: (a) the answer fails to state sufficient facts to constitute a defense; (b) the answer is uncertain (including ambiguous and unintelligible); and (c) if the answer pleads a contract, it cannot be ascertained from the answer whether the